SUPREME COURT OF INDIA

APPELLATE JURISDICTION · FULL CONSTITUTION BENCH (11 JUDGES)

Writ Petition (Civil) No. 317 of 1993

CNR: SCIN010003171993

Date: 31 October, 2002

Citation: (2002) 8 SCC 481

CORAM: Hon'ble B.N. Kirpal, C.J., G.B. Pattanaik, V.N. Khare, S. Rajendra Babu, S.

Petitioner: T.M.A. Pai Foundation & Others

- VERSUS -

Respondent: State of Karnataka & Others

DOMAIN: CONSTITUTIONAL LAW & MINORITY EDUCATIONAL RIGHTS **STATUS: Good Law (11-Judge Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The right to establish and administer educational institutions is guaranteed under Article 19(1)(g) and Article 30. In unaided private institutions, the government cannot mandate quota or capitation fees, but may regulate qualifications to maintain excellence.

STATUTES APPLIED: Article 30(1), Article 19(1)(g), Article 29, Article 14

DISPOSITION: AUTONOMY OF PRIVATE UNAIDED EDUCATIONAL INSTITUTIONS AFFIRMED

EXECUTIVE RATIO SUMMARY:

Historic eleven-judge Constitution Bench ruling establishing the autonomy of private unaided and minority educational institutions to administer their affairs, admit students, and set fee structures without state nationalization.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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